

1882 PAGE 162

## HOMES ASSOCIATION DECLARATION

906818

THIS DECLARATION, made on this 14<sup>th</sup> day of March, 1967, by HARRY F. GORDANIER and WILLA H. GORDANIER, husband and wife, THOMAS H. SHAW and HELEN L. SHAW, husband and wife, LON M. SUTHERLAND and ESTHER LEE SUTHERLAND, husband and wife, the developers of a subdivision of land in the City of Independence, Jackson County, Missouri, known as TOMASHA VILLAGE, the aforementioned persons hereinafter referred to as "Developers",

WITNESSETH: That

WHEREAS, Developers have subdivided an area of land known as and hereinafter referred to as Tomasha Village, all as shown on the following described plats filed for record in the office of the Recorder of Deeds of Jackson County, Missouri:

| <u>Instrument No.</u> | <u>Date Filed</u> | <u>Plat Book and Page</u> |
|-----------------------|-------------------|---------------------------|
| 818357                | August 19, 1963   | Book 27, Page 33          |
| 818183                | August 15, 1963   | Book 27, Page 32          |
| 837265                | June 5, 1964      | Book 27, Page 96          |
| 865368                | July 27, 1965     | Book 28, Page 81          |
| 889987                | July 11, 1966     | Book 29, Page 30          |

and the Resurvey of Tract A, Tomasha Village

|        |                  |                   |
|--------|------------------|-------------------|
| 879364 | February 9, 1966 | Book 28, Page 115 |
|--------|------------------|-------------------|

WHEREAS, Developers are now developing said Tomasha Village for residence purposes and it is Developers' desire to create and maintain a residential neighborhood possessive of features of more than ordinary value.

NOW, THEREFORE, to provide the means necessary to achieve such purposes, Developers do now and hereby subject all of the lands within the subdivision of Tomasha Village, as hereinabove described, and which at the time of the execution of this Declaration Developers individually or collectively own, to the covenants, charges and assessments set forth and contained in this Declaration.

Section 1. DEFINITION OF TERMS USED

The term "district" as used in this Declaration shall mean all of the lands enumerated above in Tomasha Village which are individually or collectively owned by Developers together with all other land located within said subdivision which may, as hereinafter provided, elect to become a part of and subject to the terms of this agreement. If or when other land shall, in the manner hereinafter provided for, be added to that described above, then the term "district" shall thereafter mean all land which shall from time to time be subjected to the terms of this agreement, including any future modifications thereof.

The term "improved property" as used herein shall be deemed to mean a single tract, consisting of one or more contiguous lots or part thereof, under a single ownership and use and on which tract one single-family-residence or one two-family-residence (duplex), is erected or is in the process of erection.

The term "landlord property" as used herein shall be deemed to mean a single tract, consisting of one or more contiguous parcels of land or lots within the boundaries of Tracts A, B, and C, under a single ownership and use and on which tract one or more multiple-family-units (a single structure designed for residence for three or more families), is erected or is in the process of erection.

1885 JES

The term "vacant and unimproved property" shall mean any land within the district which is not "improved property" or "landlord property".

The term "public places" as used herein shall be deemed to mean all streets, intersections, medial strips and similar places, the use of which is dedicated to or set aside for the use of the general public.

The term "owners" as used herein shall mean those persons or corporations who may from time to time own land within the district.

The term "private lanes" as used herein shall be deemed to mean all undedicated streets and ways which are public places as above defined.

The term "common area" as used herein shall mean the park, swimming pool, and tennis court area located on that portion of Tract D north of Covington Road.

Section 2. CORPORATION TO BE FORMED BY  
ASSOCIATION.

The owners and residents of landlord property and the owners and residents of improved property within the district shall be the members of an Association, which is hereby created and established, to be known as The Tomasha Homes Association (referred to herein as the "Association"). The Association shall be incorporated under Chapter 355 of the laws of the State of Missouri as a General Not For Profit Corporation. The Articles of Incorporation of said corporation shall contain in substance the following:

a. The name of the corporation shall be: THE TOMASHA HOMES ASSOCIATION.

b. The purposes for which the corporation is organized are hereinafter set forth in Section 4.

c. The name and address of each incorporator and each director constituting the first board of directors shall be:

- (1) Farrell Anderson, 14604 Covington Road, Independence, Mo.
- (2) John H. Boren, 4304 Greenwich Lane, Independence, Mo.
- (3) William E. Elliott, 14412 Berkshire Drive, Independence, Mo.

d. The address of the corporation, initial registered office and its initial registered agent at such address is 4304 Greenwich Lane, Independence, Missouri; John H. Boren.

e. Membership in the corporation shall be divided into two classes:

(i) Voting members shall be limited to the owners of improved property and landlord property within the boundaries of the district as it exists from time to time. In all cases where a vote or written consent or agreement is called for or permitted herein, each member who is an owner of improved property shall have one vote for each improved property as hereinbefore defined. In all cases where a vote or written consent or agreement is called for or permitted herein, each member who is an owner of landlord property shall have one vote for each landlord property as hereinbefore defined. Voting may be in person or by proxy, provided, however, that no proxy may exceed 11 months in duration.

(ii) Non-voting members. An additional class of members shall be created known as non-voting members which shall be limited to those persons who reside within the district but who are not owners of improved property or landlord property within the district. Such

1882 REC 163

1882-164

members shall have no voting rights, and shall not have the right to participate in any meeting or proceeding of the Association.

Voting members and non-voting members shall each have an equal right to the enjoyment and use of the facilities located on the common area that may be provided by the Association from time to time with the exception that voting members who do not reside within the district shall not be entitled to the enjoyment and use of the facilities located on the common area.

Prior to the charter of the corporation, herein described, being granted, the unincorporated Association shall manage and control, as Trustee, all public places and improvements upon and to the land within the district except for the common area, which are for the benefit and general use of all the owners, residents and general public within the district. After the granting of the charter of said corporation, the corporation shall then assume management and control, as Trustee, of all public places and improvements upon and to the land except for the common area, which are for the benefit and general use of all the owners, residents and general public within the district. The corporation shall assume management and control over the common area upon acquisition of title to the common area as provided in Section 13 of this instrument.

### Section 3. LAND ENTITLED TO BENEFITS.

No land and no persons residing thereon shall be entitled to any of the benefits, improvements or services provided by this Association unless the owner or owners thereof shall have subjected their land to the terms of this Declaration and to the assessments herein provided for.

### Section 4. PURPOSES, POWERS AND DUTIES OF THE ASSOCIATION.

The Association shall have the following purposes, powers and duties, which it may exercise and perform whenever in its discretion it may deem them necessary or desirable, to-wit:

a. To enforce, either in its own name or in the name of any owner within the district, any and all restrictions which have been or hereafter may be imposed upon any of the land in the district, either as originally placed thereon or as modified subsequently. This right of enforcement shall not serve to prevent such changes, releases or modifications of restrictions or reservations being made by the parties having the right to do so under the terms of the deeds, declarations, contracts or plats in which such rights of assignment exist. The expenses and costs of any enforcement proceedings shall be paid out of the general fund of the Association as herein provided for. Nothing herein contained shall be deemed or construed to prevent any owner having the contractual right to do so from enforcing in his own name any such restrictions.

b. To manage and control as Trustee for its members all public improvements upon and to the land in the district, or improvements in public places or the common area, provided that such management and control of said improvements shall at all times be subject to that had and exercised by any City, Township, County and State in which the land within the district is located.

c. To provide for the maintenance and improvement of any tennis courts, playgrounds, pedestrian ways, gateways, entrances, drinking fountains, gardens, pools, and ornamental features now existing or which may hereafter be erected or created in said district in any public street or park, or on any land set aside for the general use of the members of the Association entitled to such use; and also to provide for the maintenance and improvement of the common area.

d. To provide such lights as the Association may deem advisable on streets, parks, parkings, pedestrian ways, gateways, entrances or other features, and in

the public places and in the common area.

e. To exercise control over such easements as it may acquire from time to time.

f. To acquire and own the title to such real estate and personal property as may be reasonably necessary in order to carry out the purposes of the Association; to pay taxes on such real estate and personal property as may be owned by it; and to pay such taxes as may be assessed against the land in the common area and public places within the district.

g. To levy and collect the assessments which are provided for in this Declaration and suspend membership rights, including right to use recreational facilities of common area, for non-payment of assessments, fees or for infraction of published rules.

h. To provide for the plowing or removal of snow from streets, sidewalks and the private lanes.

i. To care for, protect and replant trees, shrubbery and grass on all private lanes and in other public places.

j. To mow, care for, and maintain parking places in front of vacant and other property and cut and remove weeds and grass from such parking areas, vacant property or other places, to pick up and remove therefrom loose material, trash and rubbish of all kinds, and to do any other things necessary or desirable in the judgment of the officers of said Association to keep such vacant and unimproved property neat in appearance and in good order.

k. To provide in suitable locations, receptacles for the collection of rubbish, and for the disposal of such rubbish as it is collected, and for the collection and disposal of garbage.

l. To exercise such control over private lanes and streets as may be within its power and as it may deem necessary or desirable; subject at all times to such control of county or other proper officials as may have jurisdiction over streets.

m. To erect and maintain signs for marking of streets.

n. To provide means for emergency fire protection and to furnish the water and necessary equipment for same.

o. To reimburse the State, County or Township for expenses of furnishing emergency special police service for the district or to employ duly qualified peace officers for such purposes.

p. To improve and maintain the common area; to improve and maintain the swimming pool within the common area; to hire qualified personnel to manage and operate the pool; to make rules of conduct and regulations concerning the use of the common area, particularly the pool, deck and patio facilities within the

common area; and to make such reasonable charges for the use of the swimming pool facilities as are necessary to so maintain, improve, operate and manage and to accumulate reserves for depreciation and major repairs and replacements to the swimming pool facilities.

q. To have and exercise such other powers and rights conferred by the laws of the State of Missouri upon corporations organized under Chapter 355.

Section 5. METHOD OF PROVIDING GENERAL FUNDS.

a. For the purpose of providing a general fund to enable the Association to exercise the powers, maintain the improvements and render the services herein provided for, all land within the boundaries of the district as now or hereafter constituted shall be subject to an annual assessment which may be levied by the Association from year to year and shall be paid to the Association annually in advance by the respective owners of the assessable land subject thereto. The Association may from year to year fix and determine the total amount required in its general fund and may levy and collect an annual assessment upon improved property not exceeding \$20.00 for each improved property within the district as now or hereafter established. Landlord property shall be assessed at the rate of \$2.00 per apartment unit but not less than \$10.00 for each separate multiple-family-unit on the landlord property.

b. The maximum annual assessment upon improved property as aforesaid may be increased up to and by an amount not exceeding one hundred per cent (100%) or twice the \$20.00 maximum annual assessment which the Association may levy and collect from year to year, provided that at a meeting of the members specially called for that purpose, prior to the date on which the assessment is levied for the year for which such increase is proposed, a two-thirds majority of the members present at such meeting authorize such an increase by an affirmative vote therefor; and provided, further, that the maximum annual assessment upon improved property may be increased up to and by an amount not exceeding two hundred per cent (200%) or thrice the said \$20.00 maximum annual assessment, provided that at a meeting of the members specially called for that purpose, prior to the date on which the assessment is levied for the year for which such increase is proposed, three-fourths (3/4) majority of the members present at such meeting authorize such an increase by an affirmative vote therefor.

c. Whenever the Board of Directors of the Association may deem it advisable to submit to the members a proposal for increasing the amount of annual assessment for a particular year over that of the immediately preceding year, it shall notify, in the manner hereinafter provided, the voting members of the Association of the time and place at which the meeting is to be held and the fact that an increase in the amount of the annual assessment is to be voted upon at such meeting. No increase in the amount of the annual assessment may be made for more than one (1) year at a time.

d. The first assessment shall be for the fiscal year beginning May 1, 1967, and it shall be fixed and levied prior to May 1, 1967, and shall be payable on that date, and thereafter it shall be due and payable on May 1st of each year. The Board of Directors shall fix and levy the annual assessment subject to the



limitations above. It will be the duty of the Association to notify all owners on or before that date, giving the amount of the assessment on each tract of land owned by them, and the date when such assessment is due. Failure of the Association to levy the assessment prior to May 1st of any year, for the next succeeding fiscal year beginning on May 1st, shall not invalidate any such assessment made for that particular year; nor shall failure to levy an assessment for any one year affect the right of the Association to do so for any subsequent year. When the assessment is made subsequent to May 1st of any year, then it shall become due and payable not later than thirty days from the date of levying the assessment. Prior to the first assessment herein above provided for, if the Board of Directors shall deem it necessary for the purpose of carrying out the terms of this Declaration, it shall have the right to make a partial assessment within the limits herein provided for and on a pro rata basis, for the period of time ending April 30, 1967. Thereafter all assessments shall be made annually as herein provided.

e. A written or printed notice, deposited in the United States Post Office, with postage thereon prepaid, and addressed to the respective owners at the last address listed with the Association, shall be deemed to be sufficient and proper notice for these purposes, or for any other purpose of this Declaration where notices are required. Notices of meetings of the membership of the Association shall be mailed not less than ten (10) days in advance of said meetings.

#### Section 6.

#### LIEN ON REAL ESTATE.

a. The assessment shall become a lien on the real estate against which it is levied as soon as it is due and payable as above set forth, provided, however, that such lien shall be subject, inferior and subordinate to the lien of any valid first deed of trust now existing or which may hereafter be placed on said real estate. In the event of the failure of any owner to pay the assessment on or before the first day of June following the levy of such assessment, then such assessment shall bear interest at the rate of eight per cent (8%) per annum from the first day of May, but if the assessment is paid before June 1st, or within thirty (30) days from the date of the assessment if the assessment is made subsequent to May 1st for the fiscal year beginning May 1st, then no interest shall be charged.

b. On or after June 1st of each year, beginning June 1, 1967, or within thirty (30) days from the date of levying the assessment for the fiscal year during which and for which the assessment is levied, the assessment shall become delinquent and payment of both principal and interest may be enforced as a lien on said real estate in proceedings in any court in Jackson County, Missouri, having jurisdiction of suits for the enforcement of such liens. It shall be the duty of the Association to bring suits to enforce such liens before the expiration thereof. The Association may at its discretion file certificates of nonpayment of assessments in the office of the Recorder of Deeds whenever any such assessments are delinquent. For each certificate so filed, the Association shall be entitled to collect from the owner or owners of the property described therein a fee of \$2.00, which fee is hereby declared to be a lien upon the real estate so described in said certificates, provided that such lien shall be inferior and subordinate to the lien of any valid first deed of trust now existing or which may hereafter be placed on said real estate. Such fee shall be collectible in the same manner as the original assessments provided for herein and in addition to the interest and principal due thereon.

c. Such liens shall continue for a period of five (5) years from the date of delinquency and no longer, unless within such time suit shall have been

1882 pag 168

instituted for the collection of the assessment, in which case the lien shall continue until the termination of the suit and until the sale of the property under execution of the judgment establishing same.

**Section 7. EXPENDITURES LIMITED TO ASSESSMENTS  
FOR CURRENT YEAR.**

The Association shall at no time expend more money within any one year than the total amount of the assessment for that particular year, plus any surplus which it may have on hand from previous assessments; nor shall said Association enter into any contract whatsoever binding the assessment of any future year to pay for any such obligation, and no such contract shall be valid or enforceable against the Association except for contracts for utilities; it being the intention that the assessment for each year shall be applied as far as practicable toward payment of the obligations of that year, and that the Association shall have no power to make a contract affecting the assessment of any future or subsequent year except for utilities.

**Section 8. ASSOCIATION TO NOTIFY MEMBERS  
OF ADDRESS.**

The Association shall notify all owners of land in the district as it may exist from time to time, insofar as the addresses of such owners are listed with said Association, of the official address of said Association, the place, time and purposes of the regular and special meetings of the Association, and the place where payments shall be made and other business in connection with said Association may be transacted, and in the case of any change of such address the Association shall notify all the owners of the land in the district, insofar as their addresses are listed with the Association, of the new address.

**Section 9. TO OBSERVE ALL LAWS - CONFLICTS.**

Said Association shall at all times observe all State, County, City and other laws, and if at any time any of the provisions of this Declaration shall be found to be in conflict therewith then such parts of this Declaration as are in conflict with such laws shall become null and void, but no other part of this Declaration not in conflict therewith shall be affected thereby. The Association shall have the right to make such reasonable rules and regulations, and provide such means and employ such agents as will enable it to adequately and properly carry out the provisions of this Declaration, subject, however, to the limitations of its rights to contract as are herein provided for.

**Section 10. AMENDMENT.**

By written consent of two-thirds (2/3) of the Voting Members of the Association within the district as then constituted, evidenced by a Declaration duly executed and acknowledged by such persons and recorded in the office of the Recorder of Deeds of Jackson County, Missouri, this instrument may be modified and amended, provided, however, no right to exceed the maximum annual assessment herein provided for may be modified and amended.

**Section 11. HOW TERMINATED.**

This Declaration may be terminated, and all of the land now or hereafter affected may be released from all of the terms, provisions and obligations herein set forth and contained, by three-fourths (3/4) of the Voting Members of the Association by their executing and acknowledging an appropriate agreement or agreements and filing the same for record in the office of the Recorder of Deeds of Jackson County, Missouri.

Section 12. OTHER LANDS - HOW THEY MAY BE  
ADDED - WHEN AGREEMENT EFFEC-  
TIVE.

Persons other than Developers, who own land within said subdivision, may from time to time add such land to the district, provided that the land to be added to the district shall at that time be bound by all of the terms of this agreement and any future modifications thereof. Such persons shall execute and acknowledge an appropriate agreement and file same for record in the office of the Recorder of Deeds of Jackson County, Missouri.

Section 13. DEVELOPERS TO DEED COMMON AREA.

After the incorporation of Association as hereinbefore provided, the Developers shall, upon written request of the Board of Directors of the Association pursuant to authority granted at a duly called meeting of said Board, convey the common area to the Association by general warranty deed free and clear of all liens and encumbrances. No monetary consideration shall be paid to the Developers by the Association for such conveyance.

Section 14. COVENANTS RUNNING WITH THE LAND.

All of the provisions of this Declaration shall be deemed to be covenants running with the land, and shall be binding upon the Developers and such other owners, who, as provided herein, elect to make their land a part of and subject to the terms of this agreement, and upon their successors, assigns and grantees.

Section 15. WHEN DECLARATION BECOMES EFFECTIVE.

This Declaration shall not be effective unless by May 1, 1967, not less than One Hundred Thirteen (113) additional lots in said subdivision of Tomasha Village, as hereinabove described, owned by persons other than Developers, have added their land to the district as provided by paragraph 12 above.

IN WITNESS WHEREOF, The said parties have hereunto set their hands and seals the day and year first above written.

DEVELOPERS:

Harry F. Gordanier  
Harry F. Gordanier

Thomas H. Shaw  
Thomas H. Shaw

Lon M. Sutherland  
Lon M. Sutherland

DEVELOPERS:

Willa H. Gordanier  
Willa H. Gordanier

Helen L. Shaw  
Helen L. Shaw

Esther Lee Sutherland  
Esther Lee Sutherland

STATE OF MISSOURI, County of Jackson, ss:

On this 14th day of March, 1967, before me, the undersigned, a Notary Public, personally appeared Harry F. Gordanier and Willa H. Gordanier, Thomas H. Shaw and Helen L. Shaw, and Lon M. Sutherland and Esther Lee Sutherland, to me known to be the persons described in and who executed the foregoing instrument, and acknowledged that they executed the same as their free act and deed.

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at my office in Raytown, Missouri, the day and year last above written.

My Commission expires:

My Commission Expires Sept. 29, 1967

Ruth J. Martin  
Notary Public in and for said  
County and State.

FILED FOR RECORD AND FULLY RECORDED IN MY OFFICE ON THIS  
APR 1 1967 AT 10:00 O'CLOCK  
BY BILL W. ARSTY, RECORDER DEPUTY



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523

I3120P1714

AMENDMENT  
TO THE  
HOMES ASSOCIATION DECLARATION  
OF TOMASHA VILLAGE

STATE OF MISSOURI  
COUNTY OF JACKSON SS  
CERTIFY INSTRUMENT RECEIVED  
1998 JAN -5 P 2:05.5  
RECORDED  
I3120P1714  
DIRECTOR OF RECORDS  
3.00  
36.00  
40.00  
509.00  
519.00  
UP

This is an Amendment to that Homes Association Declaration (herein "Declaration") affecting that certain tract of real estate identified therein and subjected thereto, said real estate being described therein as follows:

| <u>Instrument No.</u>                        | <u>Date Filed</u> | <u>Plat Book and Page</u> |
|----------------------------------------------|-------------------|---------------------------|
| 818357                                       | August 19, 1963   | Book 27, Page 33          |
| 818183                                       | August 15, 1963   | Book 27, Page 32          |
| 837265                                       | June 5, 1964      | Book 27, Page 96          |
| 865368                                       | July 27, 1965     | Book 28, Page 81          |
| 889987                                       | July 11, 1966     | Book 29, Page 30          |
| and the Resurvey of Tract A, Tomasha Village |                   |                           |
| 879364                                       | February 9, 1966  | Book 28, Page 115         |

all as specifically described in the Homes Association Declaration executed on March 14, 1967, which Declaration was thereafter recorded on May 4, 1967 as Document Number 906818 in Book 1882 beginning at Page 462 in the Office of the Recorder of Deeds for Jackson County, Missouri at Independence.

The Declaration which is hereby amended, also affects any and all other real estate which was subjected to the terms and conditions of the Declaration, including (but not necessarily limited to) the real estate identified in and described in the following:

| <u>Document No.</u> | <u>Book and Page</u> |
|---------------------|----------------------|
| 906819              | ---                  |
| 906820              | ---                  |
| 906821              | ---                  |
| 906822              | Book 1882, Page 471  |
| 906823              | Book 1882, Page 470  |
| ---                 | Book 1882, Page 472  |
| 906825              | Book 1882, Page 473  |
| 906826              | Book 1882, Page 474  |
| 906827              | Book 1882, Page 475  |
| 906828              | Book 1882, Page 476  |
| 906829              | Book 1882, Page 477  |
| 906830              | Book 1882, Page 478  |



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|         |                        |
|---------|------------------------|
| 906831  | Book 1882, Page 479    |
| 906832  | Book 1882, Page 480    |
| 906833  | Book 1882, Page 481    |
| ---     | Book I-70, Page 340    |
| ---     | Book I-70, Page 341    |
| I72467  | ---                    |
| I311112 | Book I-807, Page 275   |
| I311113 | Book I-807, Page 277   |
| I599762 | Book I-1370, Page 2067 |

WHEREAS, the Declaration in Section 10 provides with respect to amending the Homes Association Declaration that:

By written consent of two-thirds (2/3) of the Voting Members of the Association within the district as then constituted, evidenced by a Declaration duly executed and acknowledged by such persons and recorded in the office of the Recorder of Deeds of Jackson County, Missouri, this instrument may be modified and amended, provided, however, no right to exceed the maximum annual assessment herein provided for may be modified and amended.; and

WHEREAS, the undersigned represent two-thirds (2/3) or more of the Voting Members of the Association within the district as then constituted; and

WHEREAS, the undersigned deem it necessary and desirable to amend the Declaration in part as hereinafter set forth, and hereby desire that this Amendment to the Declaration be executed, acknowledged, and recorded in the Office of the Recorder of Deeds of Jackson County, Missouri, and further desire that the Declaration, as amended, changed, and modified hereby, shall continue to be enforceable in the same manner in which it was originally enforceable; and,

WHEREAS, the undersigned desire and knowledge that all terms of the Declaration not hereby changed or modified shall remain binding and enforceable as said document was originally executed.

NOW THEREFORE, by virtue of the amendment authority aforesaid, the undersigned, being two-thirds (2/3) or more of the Voting Members of the Association within the district, herein amend the Homes Association Declaration in the following respects, to wit:

I

Section 10, regarding the amendment of the Declaration, is hereby amended and



b-41  
I3120P1716

modified to read as follows:

10. Amendment.

By written consent of two-thirds (2/3) of the Voting Members of the Association within the district as then constituted, evidenced by a Declaration duly executed and acknowledged by such persons and recorded in the office of the Recorder of Deeds of Jackson County, Missouri, this instrument may be modified and amended.

II

In all other respects, the Homes Association Declaration and the language contained therein as same exists as of this date, remains unchanged, unamended, and unmodified.

IN WITNESS WHEREOF, the undersigned, being two-thirds (2/3) or more of the Voting Members of the Association within the district, do hereby set their hands on the dates indicated opposite their signatures, intending to and hereby declaring the amending, changing, and modifying of the Homes Association Declaration as referenced above.

Lance A Perkins LANCE A PERKINS  
Signature and Printed Name  
298  
Tomasha Village Lot(s) Number Owned  
11-1-97  
Date

Terry J Perkins Terry J Perkins  
Signature and Printed Name  
298  
Tomasha Village Lot(s) Number Owned  
11-01-97  
Date

Eleanor T Langford ELEANOR LANGFORD  
Signature and Printed Name  
146  
Tomasha Village Lot(s) Number Owned  
11-1-97  
Date

Roy A Langford ROY A LANGFORD  
Signature and Printed Name  
146  
Tomasha Village Lot(s) Number Owned  
11-1-97  
Date

Virginia L McMullen VIRGINIA L. McMullen  
Signature and Printed Name  
335  
Tomasha Village Lot(s) Number Owned  
11-1-97  
Date

Frederick E McMullen FREDERICK E. McMullen  
Signature and Printed Name  
335  
Tomasha Village Lot(s) Number Owned  
11-1-97  
Date



98<sup>1</sup> 1116  
300  
366  
5182  
5183

13122P 730

AMENDMENT  
TO THE  
HOMES ASSOCIATION DECLARATION  
OF TOMASHA VILLAGE

MISSOURI COUNTY OF JACOBSON SS  
I CERTIFY INSTRUMENT RECEIVED  
1970 JAN -7 A 10:49.5  
13122P 730  
RECORDED BOOK PAGE  
DIRECTOR OF RECORDS

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| and the Resurvey of Tract A, Tomasha Village |                   |                           |
| 879364                                       | February 9, 1966  | Book 28, Page 115         |

all as specifically described in the Homes Association Declaration executed on March 14, 1967, which Declaration was thereafter recorded on May 4, 1967 as Document Number 906818 in Book 1882 beginning at Page 462 in the Office of the Recorder of Deeds for Jackson County, Missouri at Independence.

The Declaration which is hereby amended, also affects any and all other real estate which was subjected to the terms and conditions of the Declaration, including (but not necessarily limited to) the real estate identified in and described in the following:

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| 906820              | ---                  |
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| 906828              | Book 1882, Page 476  |
| 906829              | Book 1882, Page 477  |
| 906830              | Book 1882, Page 478  |



|         |                        |
|---------|------------------------|
| 906831  | Book 1882, Page 479    |
| 906832  | Book 1882, Page 480    |
| 906833  | Book 1882, Page 481    |
| ---     | Book I-70, Page 340    |
| ---     | Book I-70, Page 341    |
| I72467  | ---                    |
| I311112 | Book I-807, Page 275   |
| I311113 | Book I-807, Page 277   |
| I599762 | Book I-1370, Page 2067 |

WHEREAS, the Declaration in Section 10 provides with respect to amending the Homes Association Declaration that:

By written consent of two-thirds (2/3) of the Voting Members of the Association within the district as then constituted, evidenced by a Declaration duly executed and acknowledged by such persons and recorded in the office of the Recorder of Deeds of Jackson County, Missouri, this instrument may be modified and amended, provided, however, no right to exceed the maximum annual assessment herein provided for may be modified and amended.; and

WHEREAS, the undersigned represent two-thirds (2/3) or more of the Voting Members of the Association within the district as then constituted; and

WHEREAS, the undersigned deem it necessary and desirable to amend the Declaration in part as hereinafter set forth, and hereby desire that this Amendment to the Declaration be executed, acknowledged, and recorded in the Office of the Recorder of Deeds of Jackson County, Missouri, and further desire that the Declaration, as amended, changed, and modified hereby, shall continue to be enforceable in the same manner in which it was originally enforceable; and,

WHEREAS, the undersigned desire and knowledge that all terms of the Declaration not hereby changed or modified shall remain binding and enforceable as said document was originally executed.

NOW THEREFORE, by virtue of the amendment authority aforesaid, the undersigned, being two-thirds (2/3) or more of the Voting Members of the Association within the district, herein amend the Homes Association Declaration in the following respects, to wit:

I

Section 5, subparagraphs (a) and (b), regarding the method of providing general funds,



are hereby amended and modified to read as follows:

Section 5. Method of Providing General Funds.

(a) For the purpose of providing a general fund to enable the Association to exercise the powers, maintain the improvements and render the services herein provided for, all land within the boundaries of the district as now or hereafter constituted shall be subject to an annual assessment which may be levied by the Association from year to year and shall be paid to the Association annually in advance by the respective owners of the assessable land subject thereto. The Association may from year to year fix and determine the total amount required in its general fund and may levy and collect an annual assessment upon improved property not exceeding thirty dollars (\$30.00) for each improved property within the district as now or hereafter established. Landlord property shall be assessed at the rate of three dollars (\$3.00) per apartment unit, but not less than fifteen dollars (\$15.00) for each separate multiple family unit on the landlord property.

(b) The maximum annual assessment upon improved property as aforesaid may be increased up to and by an amount not exceeding one hundred percent (100%) or twice the thirty dollars (\$30.00) maximum annual assessment which the Association may levy and collect from year to year, provided that at a meeting of the members specially called for that purpose, prior to the date on which the assessment is levied for the year for which such increase is proposed, a two-thirds (2/3) majority of the members present at such meeting authorize such an increase by an affirmative vote therefor; and provided, further, that the maximum annual assessment upon improved property may be increased up to and by an amount not exceeding two hundred percent (200%) or thrice the said thirty dollars (\$30.00) maximum annual assessment, provided that at a meeting of the members specially called for that purpose, prior to the date on which the assessment is levied for the year for which such increase is proposed, three-fourths (3/4) majority of the members present at such meeting authorize such an increase by an affirmative vote therefor."

II

In all other respects, the Homes Association Declaration and the language contained therein as same exists as of this date, remains unchanged, unamended, and unmodified.



IN WITNESS WHEREOF, the undersigned, being two-thirds (2/3) or more of the Voting Members of the Association within the district do hereby set their hands on the dates indicated opposite their signatures, intending to and hereby declaring the amending, changing, and modifying of the Homes Association Declaration referenced above.

Larry A. Perkins LARRY A. PERKINS  
Signature and Printed Name  
298  
Tomasha Village Lot(s) Number Owned  
11-1-97  
Date

Terry J. Perkins Terry J. Perkins  
Signature and Printed Name  
298  
Tomasha Village Lot(s) Number Owned  
11-01-97  
Date

Eleanor T. Langford Eleanor Langford  
Signature and Printed Name  
146  
Tomasha Village Lot(s) Number Owned  
11-1-97  
Date

Rox A. Langford Rox A. Langford  
Signature and Printed Name  
146  
Tomasha Village Lot(s) Number Owned  
11-1-97  
Date

Virginia L. McMullen Virginia L. McMullen  
Signature and Printed Name  
335  
Tomasha Village Lot(s) Number Owned  
11-1-97  
Date

Frederick E. McMullen Frederick E. McMullen  
Signature and Printed Name  
335  
Tomasha Village Lot(s) Number Owned  
11-1-97  
Date

Henry L. Thompson Henry L. Thompson  
Signature and Printed Name  
83  
Tomasha Village Lot(s) Number Owned  
11-1-97  
Date

Devian Thompson Devian Thompson  
Signature and Printed Name  
83  
Tomasha Village Lot(s) Number Owned  
11-1-97  
Date

Yvonne A. Hagaman Yvonne A. Hagaman  
Signature and Printed Name  
167  
Tomasha Village Lot(s) Number Owned  
11-1-97  
Date

Ronald J. Hagaman Ronald J. Hagaman  
Signature and Printed Name  
167  
Tomasha Village Lot(s) Number Owned  
11-1-97  
Date



I 01777

I 6P1032

ADDITION TO HOMES ASSOCIATION DECLARATION

WHEREAS, a Homes Association Declaration dated March 14, 1967, and recorded May 4, 1967, as Document No. 906818 in Book 1882 at Page 462, Office of Recorder of Deeds for Jackson County, Missouri, at Independence, was executed by Harry F. Gordanier and Willa H. Gordanier, husband and wife, Thomas H. Shaw and Helen L. Shaw, husband and wife, and Lon M. Sutherland and Esther Lee Sutherland, husband and wife, and

WHEREAS, it is the desire of said persons to subject other real estate to the terms and conditions of said Declaration.

NOW THEREFORE, Harry F. Gordanier and Willa H. Gordanier, husband and wife, Thomas H. Shaw and Helen L. Shaw, husband and wife, and Lon M. Sutherland and Esther Lee Sutherland, husband and wife, the owners of Lots 195 thru 256 Tomasha Village Resurvey and Lots 269 thru 276, a re-plat of Lots 195 thru 254 and Lots 269 thru 276, TOMASHA VILLAGE, a subdivision of land in Jackson County, Missouri, do hereby subject all of said lots to the terms and conditions of that certain Homes Association Declaration dated March 14, 1967, and recorded May 4, 1967, as Document No. 906818 in Book 1882 at page 462, Office of Recorder of Deeds for Jackson County, Missouri, at Independence.

IN WITNESS WHEREOF, the parties hereto have executed this instrument this 25th day of October, 1967.

Harry F. Gordanier  
Willa H. Gordanier  
Thomas H. Shaw  
Helen L. Shaw  
Lon M. Sutherland  
Esther Lee Sutherland

STATE OF MISSOURI )  
                          ) ss.  
COUNTY OF JACKSON )

On this 25th day of October, 1967, before me, the undersigned, a Notary Public, personally appeared Harry F. Gordanier and Willa H. Gordanier, his wife, to me personally known, and acknowledged that they executed the

foregoing instrument as their free act and deed. In testimony whereof, I have hereunto subscribed my name and affixed the seal of my office on the day and year above written.

I6P1033

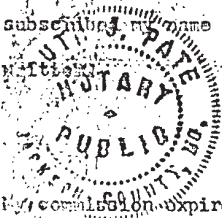


Ruth J. Pato  
Notary Public

My commission expires My Commission Expires Sept. 29, 1971

STATE OF MISSOURI)  
)SS.  
COUNTY OF JACKSON)

On this 25th day of October, 1967, before me, the undersigned, a Notary Public, personally appeared Thomas H. Shaw and Helen L. Shaw, his wife, to me personally known, and acknowledged that they executed the foregoing instrument as their free act and deed. In testimony whereof, I have hereunto subscribed my name and affixed the seal of my office on the day and year above written.

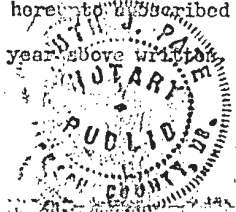


Ruth J. Pato  
Notary Public

My commission expires My Commission Expires Sept. 29, 1971

STATE OF MISSOURI)  
)SS.  
COUNTY OF JACKSON)

On this 25th day of October, 1967, before me, the undersigned, a Notary Public, personally appeared Lon M. Sutherland and Esther Leo Sutherland, his wife, to me personally known, and acknowledged that they executed the foregoing instrument as their free act and deed. In testimony whereof, I have hereunto subscribed my name and affixed the seal of my office on the day and year above written.



Ruth J. Pato  
Notary Public

My commission expires My Commission Expires Sept. 29, 1971



LAND TITLE

2 017777

1882  
1/62

STATE OF MISSOURI )  
JACKSON COUNTY ) SS  
RECEIVED FOR RECORD

NOV 3 11 10 26 A

RECORDED  
INDEXED

I6P1034

I 6P1032

906818

LAND TITLE

200

STATE OF MISSOURI ) SS. IN RECORDER'S OFFICE  
COUNTY OF JACKSON )

I, BILL W. AUSTIN, Recorder of Deeds within and for the County aforesaid, do hereby  
certify that the foregoing instrument of writing was on the 10 day of November  
A. D. 1967 at 10:26 A.M. filed for record in  
this office. The instrument is recorded in the  
record of this office in book I 6 at page 1132.

Attest my hand and seal of said office, at  
Independence, Missouri, this day of November, 1967.  
BILL W. AUSTIN, Recorder

J. McManis